

# Education support

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

## In plain words

- One posted schedule of what's covered.
- Same rate for everyone in the same row, on or off reserve.
- Written decision within 30 days.
- Applications from leaders' families are decided by the appeal body, not council.

## Why this draft is here

A student shouldn't have to know the right person to get funded. The same rules, the same rates, and a written answer for everyone.

## 1. Purpose

- 1.1 This code sets one education budget and a written decision for every applicant. Support does not depend on which councillor is asked.

## 2. What is covered

- 2.1 Council puts one education amount in the yearly budget. The finance officer posts the schedule of rates at least 14 days before the budget vote.
- 2.2 The draft schedule, which electors may change before adoption:

| Item                                             | Amount                                     | Rule                                                     |
|--------------------------------------------------|--------------------------------------------|----------------------------------------------------------|
| Tuition and required fees                        | The invoice, if the budget line can pay it | Same rule for every member in that program               |
| Books and required materials                     | Up to \$800 in a school year               | Receipts filed within 30 days, or the next payment waits |
| Living support, school more than 80 km from home | The monthly rate posted in the budget      | One rate for every member in this row                    |
| Living support, school 80 km or closer           | The monthly rate posted in the budget      | One rate for every member in this row                    |
| Trades, apprenticeship, and certificate programs | Same rows as above                         | Treated the same as college and university               |

- 2.3 Living on or off reserve does not change which row applies. A decision that uses residence as a reason, where the schedule doesn't, is void. The education officer issues a corrected decision within 14 days.

- 2.4** If the budget runs short, every approved student in a row gets the same reduced share. Nobody is cut first because of who they are.

### **3. Decisions**

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- 3.1** An application goes to the education officer, who acknowledges it within 7 days and decides in writing within 30 days of it being complete. The decision states the amount, the months, and the section relied on. A refusal gives the reason and the appeal deadline.
- 3.2** No decision by day 30 counts as a refusal on day 31. The applicant may appeal on day 32.
- 3.3** The applicant may appeal to the appeal body within 14 days. The appeal body decides within 21 days, and its decision replaces the officer's.
- 3.4** An application from the chief, a councillor, an education office employee, or their immediate family is decided by the appeal body within 30 days. A decision by council on that file is void.
- 3.5** Every quarter, within 30 days of the quarter's end, the education officer posts the number of applications, approvals, refusals, and the total paid. Names are not posted.

### **4. Changing this code**

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- 4.1** Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 4.2** An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 4.3** An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 4.4** The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

### **5. Review and coming into force**

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- 5.1** This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 5.2** Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 5.3** The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 5.4** Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 5.5** The records officer keeps the adopted text and its plain summary posted for at least 10 years.

### **Before members vote**

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.